

Cardinal Health 414 LLC, et al. v. Nancy Gay Kreis, et al.
21CV45221

MOTION FOR AN ORDER
COMPELLING RESPONSES TO DISCOVERY

Defendant Nancy Gay Kreis moves, pursuant to Code of Civil Procedure sections 2030.290, and 2031.320, for an order compelling Plaintiffs Cardinal Health 404, LLC (Cardinal Health) and XL Insurance America, Inc. (XL) responses to form interrogatories, special interrogatories, and requests for production of documents on the grounds that Cardinal Health and XL “have failed to voluntarily comply with the aforementioned discovery requests.” (Notice of Motion at 1:24-2:7.)

Plaintiffs concede that they have failed to timely produce responses to the subject discovery requests. (See Opposition at 2:8-14.) Plaintiffs therefore do not oppose the present motion. (See *Id.* at 2:8-9.)

The Court finds good cause for issuing an order compelling Plaintiffs to produce responses to Defendant’s Form Interrogatories Sets One, Special Interrogatories, Sets One, and Requests for Production of Documents, Sets One.

Based on the foregoing, Defendant’s motion to compel is GRANTED. Plaintiffs to provide complete verified answers, without objection, to the general and special interrogatories, and a verified response, without objection, including all responsive documents in plaintiffs’ care, custody, or control, by the close of business on September 17, 2021.

Defendant’s memorandum contains a section in which Defendant argues that she is entitled to sanctions for Plaintiffs’ failure to timely serve responses to the subject discover. However, Defendant’s Notice of Motion contains no reference to a request for sanctions. As such, any such request is not properly before the Court. (See Rules of Court, Rule 3.1110 “[a] notice of motion must state in the opening paragraph the nature of the order being sought and the grounds for issuance of the order”]; see also Code Civ. Proc., § 2023.040 “[a] request for a sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought”].) Additionally, the Court reads the discovery statutes as mandating sanctions only where there is a meritless opposition. Based on the foregoing, Defendant is not entitled to an award of sanctions in connection with the present motion.

The clerk shall provide notice of this ruling to the parties forthwith. Defendant to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

Marc Chesson, *et al.* v. Knight & Day Investments, Inc., *et al.*

18CV43298

MOTION TO CONTINUE TRIAL DATE

Defendant Paul M. Zagaris Inc. dba PMZ Real Estate and Cross-Defendant Martina Owens (collectively PMZ) move, pursuant to California Rules of Court, rule 3.1332, for an order vacating and continuing the dates set for trial and pre-trial readiness conference in the matter, along with all related dates and deadlines.

One basis for the motion relates to the potential addition of new parties through an amended cross-complaint. However, the motion for leave to file that amended cross-complaint is not on calendar until September 17, 2021. The Court is unavailable to hear the motion for leave to file the amended cross-complaint on that date.

For the foregoing reasons, the present motion to continue trial and the motion for leave to file an amended cross-complaint are CONTINUED to October 15, 2021, 9:00 a.m. in Dept. 2.

The Court notes the serious health matters alleged in the Declaration of Robert R. Eckert, Sr., filed in support of the opposition to the present motion. The parties are directed to take all reasonable steps necessary to preserve Mr. Eckert's trial testimony through an evidentiary deposition and report on such efforts at the continued hearing.

The clerk shall provide notice of this ruling to the parties forthwith. No formal order pursuant to Rule of Court 3.1312 is required.